

Court No. - 9

Case :- WRIT - C No. - 46443 of 2010

Petitioner :- Prem Kishore Mehrotra

Respondent :- State Of U.P. & Others

Petitioner Counsel :- A. K. Rai, Vishnu Kr. Singh

Respondent Counsel :- C. S. C., Anubhav Sinha

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Mrs. Jayashree Tiwari, J.

Put up as fresh on Monday i.e., 9.8.2010 before division bench hearing misc. writ petitions.

Order Date :- 6.8.2010

vs

Court No. - 2

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Petitioner :- Prem Kishore Mehrotra

Respondent :- State Of U.P. & Others

Petitioner Counsel :- A. K. Rai, Vishnu Kr. Singh

Respondent Counsel :- C. S. C., Anubhav Sinha

Hon'ble Vineet Saran, J.

Hon'ble Abhinava Upadhya, J.

Heard learned counsel for the petitioner as well as learned Standing counsel appearing on behalf of respondent no.1 and Sri Anubhav Shukla, learned counsel for the contesting respondents no.2 and 3 and have perused the record. With consent of the learned counsel for the parties, this writ petition is being disposed of at this stage without calling for a counter affidavit.

By means of this writ petition the petitioner has prayed for a writ of Mandamus directing the respondents no.2 and 3 to instal the electricity connection in shop no. 308, Rani Mandi, Allahabad.

The brief facts of this case are that the petitioner, who is a tenant of the shop in question, applied for electricity connection on 15.7.2010 but his application form was not accepted on the ground that 'No Objection Certificate' has not been given by the landlord. Learned counsel for the petitioner contends that a dispute of tenancy is pending with the landlord and if 'No Objection Certificate' is not given by the landlord, the petitioner can be granted electricity connection in accordance with Para 4.4 read with Annexure 4.2 of the U.P.Electricity Supply Code, 2005. Learned counsel for the petitioner submits that the petitioner is ready to complete all formalities but the application of the petitioner is not being accepted by the respondents.

Sri Anubhav Shukla, learned counsel for the respondents, however, submits that in case if the petitioner re-submits his application form before the Executive Engineer (Distribution), Kalyani Devi Vidyut Vitran Khand, Allahabad, respondent no.3, along with a certified copy of this order, the same shall be accepted by the said respondent and within 10 days of the filing of the same the respondent no.3 shall intimate the petitioner about the formalities to be completed by him for grant of electricity connection and in case if the petitioner completes such formalities, the electricity connection shall be granted and installed in the shop of the petitioner immediately after the petitioner completes the

formalities.

In view of the stand so taken by the learned counsel for the parties, no useful purpose would be served by keeping this writ petition pending. This writ petition is thus disposed of directing the respondents to consider the case of the petitioner for grant of electricity connection subject to fulfillment of all necessary requirements by the petitioner.

Order Date :- 9.8.2010

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